

15. 9:00 AM CASE NUMBER: MSC20-01624
CASE NAME: RAFAY VS FCA US, LLC
*HEARING ON MOTION IN RE: ATTORNEYS' FEES, COSTS, AND EXPENSES
FILED BY: RAFAY, RAYAN
TENTATIVE RULING:

The Court, *sua sponte*, continues this matter to **June 15, 2026, 9:00 am in Department 34.**

16. 9:00 AM CASE NUMBER: N23-1456
CASE NAME: PETITION OF: CURIA GLOBAL, INC.
*HEARING ON MOTION IN RE: AMEND JUDGMENT TO ADD VAXANIX BIO LTD. AND VAXANIX BIO
ACQUISITION CORP. II AS JUDGMENT DEBTORS BY SUCCESSION
FILED BY:
TENTATIVE RULING:

Before the Court is Petitioner Curia Global, Inc.'s Motion to Amend Judgment to Add Vaxanix Bio Ltd. and Vaxanix Bio Acquisition Corp. II as Judgment Debtors by Succession.

Petitioner's Motion is **GRANTED** as set forth below.

Factual Background

Petitioner Curia Global, Inc. ("Curia") is a contract research and manufacturing organization that offers synthesis and contract manufacturing services for all phases of drug development. Respondent BryoLogyx, Inc. ("BryoLogyx") entered into a contract with Curia to provide such services. After a dispute arose between the parties, Curia initiated arbitration related to the dispute.

Curia ended up prevailing at the arbitration. Curia then moved to have the Court confirm the arbitration award. The Court confirmed the arbitration award. Curia now moves to amend the judgment to add Vaxanix Bio Ltd. ("Bio") and Vaxanix Bio Acquisition Corp. II ("Acquisition") (collectively the "Vaxanix Entities") due to the merger of BryoLogyx with Acquisition.

On or about January 28, 2024, BryoLogyx entered into an "Agreement and Plan of Merger" with Bio and Acquisition. (Tilghman Decl. Ex. A-6.) According to the Merger Agreement, the "[Bio], [Acquisition] and [BryoLogyx] intend to effect a merger of [BryoLogyx] with and into [Acquisition]..." (*Id.* at Recitals A.) The pertinent details of the merger will be discussed below.

The Vaxanix Entities object in part to the request. They argue that there is no basis to add Bio to the judgment but do concede that the Court can "amend the judgment to add only Vaxanix Acquisition [Corp. II]" to the judgment. Given that all parties agree that Acquisition ought to be added to the judgment, the Court will only address the arguments pertaining to the request to add Bio.

Standard

"Under [Code of Civil Procedure] section 187, the trial court is authorized to amend a judgment to add additional judgment debtors. ... As a general rule, 'a court may amend its judgment at any time so that the judgment will properly designate the real defendants....'" (*Danko v. O'Reilly* (2014) 232 Cal.App.4th 732, 735-36.) This sometimes occurs under an 'alter ego' theory. (*Ibid.*) "Modification of a

judgment may also be proper under the ‘successor corporation’ theory.” (*Wolf Metals Inc. v. Rand Pacific Sales Inc.* (2016) 4 Cal.App.5th 698, 704.) “According to that theory, when a corporation sells or transfers all of its assets to another corporation constituting its ‘mere continuation,’ the latter is also liable for the former’s debts and liabilities.” (*Id.* at 704-05.)

Analysis

“[I]t is long established law in California that a corporation formed by a consolidation or merger succeeded by operation of law to all the obligations and liabilities of the constituent corporations....” (*Rubio v. CIA Wheel Group* (2021) 63 Cal.App.5th 82, 102.) “The same is true for an asset purchase by a corporation which is a de facto merger.” (*Ibid.*) “More generally, a purchaser of assets has successor liability if ‘(1) there is an express or implied agreement of assumption, (2) the transaction amounts to a consolidation or merger of the two corporations, (3) the purchasing corporation is a mere continuation of the seller, or (4) the transfer of assets to the purchaser is for the fraudulent purpose of escaping liability for the seller’s debts.’” (*Ibid.* quoting *Cleveland v. Johnson* (2012) 209 Cal.App.4th 1315, 1327.)

Curia argues several theories as to why Bio is liable for the BryoLogyx judgment. First, the terms of the Merger Agreement state as such. Specifically, section 1.4(e) states:

Payment By The Parent or Merger Sub of The Accepted Company Liabilities.

At the Closing, [Bio] will pay, or will cause [Acquisition] to pay, as such paying Party is communicated in writing by [Bio] to [BryoLogyx] prior to the Closing, ***the Accepted Company Liabilities including therein such payments to Curia*** after the Closing to be in accordance with the payment terms set forth in the Curia Agreement or, if the Curia Agreement has been rejected by, and therefore is not executed and delivered by, Curia, the as [Bio] and [BryoLogyx] agree in writing prior to the Closing. (emphasis added.)

The “Accepted Company Liabilities is defined to mean “those Liabilities of [BryoLogyx] set out in Schedule 2.8 hereto.” (Merger Agreement, Ex. A.) Schedule 2.8, titled “Accepted [BryoLogyx] Liabilities includes “Curia (AMRI) \$2,735,293.” (*Id.* at Schedule 2.8.) The wording of this section indicates that Bio will pay the debt if it does not ‘cause’ Acquisition to do so.

In addition to the above, in the section pertaining to conditions for Closing, the Merger Agreement provides that BryoLogyx will have paid off all debts except for the Accepted Company Liabilities which are “to be paid by [Bio] or [Acquisition]....” (Merger Agreement, 1.3(b)(ix).) Curia also notes that the Merger Agreement makes clear that the use of “the word ‘or’ will be inclusive such that, for example, “A or B” will be deemed to mean “A or B or both A and B.” (*Id.* at 6.18(e).)

Thus, Curia argues that the terms of the Merger Agreement make clear that Bio agreed to pay (if Acquisition did not) the Curia liability owed by BryoLogyx. Accordingly, Bio should be added to the judgment since it has agreed to ensure Curia is paid for the Debt.

In Opposition, the Vaxanix Parties appear to agree with the above overview of how the Merger Agreement handles the payment. They note: “Although only Vaxanix Acquisition merged with BryoLogyx, the Merger Agreement contemplated that either Vaxanix Acquisition or its parent would assume the liability of Curia’s judgment, and that the parties would decide which entity would pay the judgment and memorialize that in writing prior to closing,” then quoting section 1.4(e) of the Merger

Agreement. (Opp. at 2:20-23.)

Bio then points to an Officer's Certificate, dated June 6, 2024, executed by the CEO of Bio and Acquisition (Mark Germain) which it claims waived certain provisions of the Merger Agreement. Specifically, section 3 of the Officer's Certificate states, in pertinent part:

In consideration of the foregoing, as evidenced by the Closing, the Company [BryoLogyx] agrees to waive the following conditions or requirements to Closing that otherwise were to be satisfied by [Bio] and/or [Acquisition]:...

- Section 1.4(e) with respect to the requirement calling for payment of Accepted Company Liabilities by [Bio] or [Acquisition] at the Closing; without negating the assumption of such liabilities by [Acquisition] upon the effectiveness of the Merger."

The Vaxanix Entities argue that based on this Officer's Certificate, "at the time of closing, **all parties agreed** to waive the condition that either Vaxanix Bio or Vaxanix Acquisition would pay the Curia judgment, instead defaulting to the general rule of a triangular merger that only Vaxanix Acquisition, and not Vaxanix Bio, would assume the liability of the Curia judgment." (Opp. at 3:15-18, emphasis added.)

The Officer's Certificate, however, was only issued by Bio and Acquisition. There is no such statement by BryoLogyx. As noted by Curia, BryoLogyx issued its own Officer's Certificate, dated May 8, 2024. That document does not include such a waiver. Under the terms of the Merger Agreement, BryoLogyx would have needed to execute a written waiver on its own behalf in order to waive that, or any other, provision of the Agreement. (Merger Agreement at 6.12(b).)

The Vaxanix Parties' position does not support a finding that terms of section 1.4(e) were effectively waived by the parties to the Merger Agreement.

Triangular Merger and De Facto Merger

The Vaxanix Parties contend that the merger between the entities was a "triangular merger" and therefore insulates Bio from assuming the Curia liabilities. They argue that the "structure of the transaction was a triangular merger, which permits the acquiring company (Vaxanix Bio) to acquire control of a target company (BryoLogyx) by forming a new subsidiary (Vaxanix Acquisition) into which the target company is merged." (Opp. at 2:12-16 citation omitted.)

The structure of the transaction as a 'triangular merger,' or any other designation, does not shield the parent corporation from liability if the transactions is deemed a de facto merger. (*Rubio*, supra, 63 Cal.App.5th at 102.) The de facto merger "exception applies where the assets of one corporation are transferred without consideration which can be made available to satisfy claims or 'where the consideration consists wholly of shares of the purchaser's stock which are promptly distributed to the seller's shareholders in conjunction with the seller's liquidation.'" (*Marks v. Minn. Mining & Mfg. Co.* (1986) 187 Cal.App.3d 1429, 1435, citations omitted.)

While a triangular merger may not result in a de facto merger, courts have held that they may be deemed a de facto merger if "they are structured to disadvantage creditors or shareholders." (*North Valley Mall, LLC v. Longs Drug Stores California, LLC* (2018) 27 Cal.App.5th 598, 604.) As noted by Curia, the "Merger Consideration" received by BryoLogyx consisted of shares in Bio, not Acquisition, leaving BryoLogyx (now merged into Acquisition) a shell company with no consideration from the merger with which to pay Curia. (Merger Agreement at § 1.5(b).) There was no cash consideration

paid. “The crucial factor in determining whether a corporate acquisition constitutes either a de facto merger or a mere continuation is the same: whether adequate cash consideration was paid for the predecessor corporation’s assets.” (*Franklin v. Usx Corp.* (2001) 87 Cal.App.4th 615, 625.)

The de facto merger “exception has been invoked where one corporation takes all of another’s assets without providing any consideration that could be made available to meet claims of the other’s creditors.” (*Ray v. Alad Corp.* (1977) 19 Cal.3d 22, 28.) That is what occurred here. The Vaxanix Parties attempted to structure the transaction such that Curia would be effectively unable to collect the judgment it has against BryoLogyx.

Conclusion

Curia’s motion to amend the judgment to add Vaxanix Bio Ltd. and Vaxanix Bio Acquisition Corp. II to the Judgment entered on May 27, 2024, is **GRANTED**.

17. 9:00 AM CASE NUMBER: N25-2378
CASE NAME: CLAIM OF:RYAN RENN
***HEARING ON MINOR'S COMPROMISE**
FILED BY: RENN, RANDALL
TENTATIVE RULING:

Petitioner Randall Renn (“Petitioner”) filed a petition for approval of compromise of minor’s claims on December 5, 2025 (the “Minor’s Compromise”) seeking court approval of the compromise and proposed disposition set forth therein relating to the minor claimant Ryan Renn (the “Minor”). See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor’s Compromise was set for hearing on April 27, 2026. An amended petition was filed on January 15, 2026.

Analysis

The Minor’s Compromise is unopposed. The Court has considered the verified Minor’s Compromise and supporting declaration as amended. While the Court is inclined to find the proposed terms to be just and reasonable, it does not appear that Petitioner has been appointed guardian ad litem herein as yet.

Disposition

The Court finds and rules as follows:

1. The PARTIES ARE ORDERED TO APPEAR. The Court will entertain any oral motion for appointment of Petitioner as guardian ad litem in connection with granting the relief sought. Appropriate forms of order should be brought to the hearing.